

FILED BY: BANK OF AMERICA, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where he was served with process via substitute service. The address was also in an attachment to the Complaint.

Though Defendant never filed an Answer, he did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that he was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$12,410.34, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$4,700.

Costs are \$466.39, per stipulation, plus additional costs of \$450.11, that are itemized in the accompanying Declaration.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$8,626.84.

Plaintiff to file order on Motion, as well as submit Judgment.

**5. 9:00 AM CASE NUMBER: L25-01481
CASE NAME: LVNV FUNDING LLC VS. JACLYN ELLSWORTH
*HEARING ON MOTION IN RE: TO SET ASIDE JUDGMENT
FILED BY: ELLSWORTH, JACLYN
TENTATIVE RULING:**

Defendant filed this Motion to Set Aside Judgment under Section 473.5 of the CCP, contending that she did not receive actual notice.

Plaintiff filed a judgment in the matter on 12/9/25.

Defendant timely served the Motion on Plaintiff, and the Motion is unopposed.

Background

Plaintiff filed a proof of service of process, of which the court takes judicial notice, reflecting that a process server completed personal service on 4/13/25. The person who was served identified herself as Jaclyn Ellsworth, and the service took place at the same address the Defendant used on this Motion. The server described the individual as a white woman, 35-45 and of medium height, and with dyed hair.

Defendant, in her declaration claims he was never actually served with process, though she was home at the time of the purported service.

Analysis

Defendant seeks relief under Section 473.5 of the Code of Civil Procedure, which confers power on the court to set aside a default judgment when the defendant does not receive actual notice of the process; as well as Section 473(b) of the CCP, which provides the same authority in cases where a defendant acts or fails to act out of mistake, inadvertence, surprise or excusable neglect. When service is done by a registered process server, there is a presumption of valid service. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 (the filing of a proof of service creates a rebuttable presumption that the service was proper).

In the instant matter, the court does not have enough information, from the written submissions alone, to render a decision. Thus, the court will require an evidentiary hearing.

Disposition

Parties to appear in court for evidentiary hearing on the issue of service of process.

6. 9:00 AM CASE NUMBER: L25-02037
CASE NAME: PORTFOLIO RECOVERY ASSOCIATES, LLC VS. SHAUN AVANT
***HEARING ON MOTION IN RE: SET ASIDE DEFAULT AND DEFAULT JUDGMENT**
FILED BY: AVANT, SHAUN A
TENTATIVE RULING:

Defendant filed this Motion to Set Aside Judgment under Section 473.5 of the CCP, contending that he did not receive actual notice.

Plaintiff filed a judgment in the matter on 2/23/26.